

November 2, 2011



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11077
(ELEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the hazardous materials identified in paragraph 6 below, in a limited number of UN1A1 and DOT 42B drums which do not meet all requirements of §§ 173.226 and 173.227. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.226 and 173.227 in that alternative packaging is authorized, as specified herein.
5. BASIS: This special permit is based on the application of Department of Defense dated October 26, 2011 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Dimethylhydrazine, unsymmetrical	6.1	UN1163	I, Hazard Zone B
Methylhydrazine	6.1	UN1244	I, Hazard Zone A
Nitric Acid, red fuming	8	UN2032	I, Hazard Zone B
Toxic by inhalation liquid, flammable, n.o.s. with an inhalation toxicity lower than or equal to 1000 ml/m3 and saturated vapor concentration greater than or equal to 10 LC50 (50% Anhydrous hydrazine and 50% unsymmetrical dimethylhydrazine)	6.1	UN3384	I, Hazard Zone B
Toxic by inhalation liquid, flammable, corrosive, n.o.s. with an inhalation toxicity lower than or equal to 200 ml/m3 and saturated vapor concentration greater than or equal to 500 LC50 (1,1-Dimethylhydrazine, diethylene triamine)	6.1	UN3488	I, Hazard Zone A

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Prescribed packaging for dimethylhydrazine,

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unsymmetrical; methylhydrazine; 1,1-Dimethylhydrazine, diethylene triamine; and 50% anhydrous hydrazine and 50% unsymmetrical dimethylhydrazine is a UN1A1 stainless steel drum, tested and marked at the Packing Group I level for liquids with a specific gravity of at least 1.2, and a hydrostatic pressure test of 550 kPa. Only the 485 drums identified in the application dated July 29, 1993 may be used under the terms of this special permit. Drums must meet all requirements of §§ 173.226 or 173.227, as applicable, including requirements for outer drums, except that the closure is not required to be provided with a secondary cap seal in accordance with §§ 173.226(b)(3)(iii) or 173.227(b)(2)(iii). For methylhydrazine, the inner drum does not meet the minimum thickness requirements of § 173.226(b)(4)(ii)(A). Drum thickness must be at least 1.35mm (0.053 inches).

(2) Prescribed packaging for nitric acid, red fuming, is a DOT Specification 42B aluminum drum. Only those 110 drums identified in the application dated July 29, 1993 may be used under the terms of this special permit. Drums must meet the performance testing requirements of Subpart M of Part 178, for UN1B1 drums at the Packing Group I level for liquids with a specific gravity of at least 1.6, and a hydrostatic test pressure of at least 250 kPa. Drums must meet all requirements of § 173.227, except that the closure is not required to be provided with a secondary cap seal in accordance with § 173.227(b)(2)(iii).

b. VEHICLE SPECIAL REQUIREMENTS - Shipments must be in enclosed van trailers, in exclusive-use-of-vehicle service. Drums, which must be securely blocked and braced, may not be stacked (double decked) within the transport vehicle. Shipments must be from one origin to one destination only, without any intermediate pickup or delivery.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained

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at each facility where the package is offered or reoffered for transportation.

c. MARKING - In addition to the markings required by the applicable DOT or UN specification, each drum must be marked "DOT-SP 11077."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits

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and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: benmoore/kah